

Amendment No. 2 to HB1096

Behn
Signature of Sponsor

AMEND Senate Bill No. 1074*

House Bill No. 1096

by deleting SECTION 2 and substituting:

SECTION 2. Tennessee Code Annotated, Section 4-3-739(b)(1), is amended by adding the following as new subdivisions:

(D) Enter into a community benefits agreement or any similar legal contract if the agreement or contract imposes obligations or conditions on the employer regarding employment practices, benefits, or operations that are not directly related to the performance of the employer's duties under the economic development incentive;

(E) Commit a willful violation of a safety standard prescribed pursuant to the Occupational Safety and Health Act of 1970 (9 U.S.C. § 651 et seq.) or the Occupational Safety and Health Act of 1972, compiled in title 50, chapter 3, part 1, where the violation causes the death of an employee during the twelve (12) months preceding the effective date of the incentive agreement or during the time the agreement is in effect;

AND FURTHER AMEND by deleting SECTION 3 and substituting:

SECTION 3. Tennessee Code Annotated, Section 4-3-739(d), is amended by adding the following new subdivision:

(3) Subdivisions (b)(1)(D) and (b)(1)(E) apply to contracts, agreements, and understandings executed, renewed, or otherwise modified on or after July 1, 2025.

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.